

SUBSTITUTE FOR
HOUSE BILL NO. 5210

A bill to amend 1994 PA 451, entitled
"Natural resources and environmental protection act,"
by amending section 47331 (MCL 324.47331), as added by 1995 PA 57.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 47331. (1) ~~Upon~~**On** the payment of the fee provided for in
2 section 47330, the department shall ~~have prepared~~**prepare** and shall
3 issue to a person entitled to the same, a printed or written
4 license signed by the department setting forth the date of issuing
5 the license, to whom **the license was** issued, the date on which ~~it~~
6 ~~will expire,~~**the license expires**, the name or number **of the**
7 **license**, and the **number of** and kind of ~~boat, tug, or launch,~~
8 ~~including~~**vessel for which the license was issued**, and the number
9 of and kind of net or nets for which the license was issued. **A**



1 **licensee may list single or multiple vessels on each license, list**
 2 **the same vessel or vessels on each license, and may add or subtract**
 3 **vessels at any time on a license on written notification to the**
 4 **department.** The department shall also issue, with the license, a
 5 suitable tag bearing the license number and the year for which **the**
 6 **license was** issued ~~which that~~ must be attached to ~~the boat~~ **a vessel**
 7 to facilitate identification. The department, ~~upon~~ **on** application
 8 and the payment of a fee of ~~\$1.00,~~ **\$25.00**, may do 1 or more of the
 9 following:

10 (a) Permit the transfer of a license to a larger or a smaller
 11 ~~boat or to any boat, tug, or launch~~ **vessel** during a period of time
 12 that the licensed ~~boat, tug, or launch~~ **vessel** is disabled and
 13 undergoing repairs.

14 (b) ~~In case of the sale~~ **If the owner sells** or ~~the transfer of~~
 15 **transfers** the title of any licensed ~~boat,~~ **vessel**, transfer the
 16 license to the new owner or owners. However, if the sale or
 17 transfer is to a nonresident as determined ~~by the preceding~~
 18 ~~sections,~~ **under section 47330**, ~~then~~ the difference between the fee
 19 for a resident license and a nonresident license ~~shall~~ **must** also be
 20 paid.

21 (c) ~~In case of the loss of a~~ **If a vessel by fire, collision,**
 22 ~~or otherwise,~~ for which a license has been issued **is lost by fire,**
 23 **collision, or otherwise**, transfer the license to any similar ~~boat~~
 24 **vessel** to which the licensee may acquire title.

25 (2) ~~Whenever~~ **If** a license is transferred to a larger ~~boat,~~
 26 **vessel**, the difference between the fee paid for the license and the
 27 fee required by this part for that ~~boat~~ **vessel** **must** also be
 28 paid. A refund ~~shall~~ **is** not be made ~~when~~ **if** a license is
 29 transferred to a smaller ~~boat.~~ **vessel**. However, any ~~boat~~ **vessel** to



1 which a license has been transferred as provided in this section
2 ~~shall~~**must** be used in the taking, catching, or killing of fish or
3 in the setting or pulling of nets, set hook lines, or other
4 commercial fishing devices, only within a radius of 50 miles of the
5 port designated in the license as originally issued. ~~, and not more~~
6 ~~than 1 license shall be issued for any 1 boat in any 1 calendar~~
7 ~~year.~~The owner of any licensed ~~boat~~**vessel** acquired from the
8 estate of a deceased licensee or as a result of bankruptcy
9 proceedings may, in addition to having the license transferred in
10 ~~his or her~~**the owner's** name, have a port of ~~his or her~~**the owner's**
11 choice designated in the license.